

The Chief Commissioner Gurdwara Elections Appointment Rules, 2014

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The Chief Commissioner Gurdwara Elections Appointment Rules, 2014

Rule THE-CHIEF-COMMISSIONER-GURDWARA-ELECTIONS-APPOINTMENT-RULES-2014 of 2014

Published on 10 October 2014

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The Chief Commissioner Gurdwara Elections Appointment Rules, 2014

Published vide Notification New Delhi, the 10th October, 2014

Ministry of Home Affairs

G.S.R. 716(E). - In exercise of the powers conferred by sub-section (1) of Section 146 read with clause (17A) of Section 2 and Section 47 A of the Sikh Gurdwaras Act, 1925 (Punjab Act VIII of 1925), the Central Government hereby makes the following rules regulating the appointment of the Chief Commissioner, Gurdwara Elections, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Chief Commissioner Gurdwara Elections Appointment Rules, 2014.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Sikh Gurdwaras Act, 1925 (Punjab Act VIII of 1925);

(b)

Words and expressions used herein and not defined in these rules, but defined in the Act, shall have the meanings respectively assigned to them in the Act.

3.

Appointment of Chief Commissioner, Gurdwara Elections.

- The Central Government may, by notification in the Official Gazette, appoint a person selected under sub-rule 3 of rule 4 as the Chief Commissioner, Gurdwara Elections for performing the functions required under the Act.

4.

Manner of selection by Search-cum-Selection Committee.

(1)

The Central Government shall seek from the Registrar, Punjab and Haryana High Court, a panel of at least three retired judges not exceeding the age of 70 years who have retired from the Punjab and Haryana High Court.

(2)

On receipt of the panel of retired judges from the Punjab and Haryana High Court, the Search-cum-Selection Committee, consisting of the following members, shall recommend a panel of suitable candidate(s) for the post of Chief Commissioner, Gurdwara Elections in the order of preference, namely:-

(i) Home Secretary

- Chairman

(ii) Law Secretary

- Member

(iii) Secretary, Department of Expenditure

- Member

(3)

The recommendation of the Search-cum-Selection Committee shall be forwarded to the Appointments Committee of Cabinet (ACC) for final selection for the post of Chief Commissioner, Gurdwara Elections.

5.

Term of office of Chief Commissioner, Gurdwara Elections.

- The term of office of the Chief Commissioner, Gurdwara Elections, so appointed under rule-3, shall be for a period of two years which may be extended by a period of one year, if considered necessary, with the approval of the Appointments Committee of Cabinet (ACC).

6.

Pay and allowances.

- The pay and allowances to the Chief Commissioner, Gurdwara Elections shall be as admissible to a Secretary to the Government of India minus pension.

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